

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 99-05
	)	
PHILLIP CLYDE WOODERSON,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
	)	
Respondent.	)	

COMES NOW the Board of Social Work Examiners of the State of Iowa ("Board") and Phillip Clyde Wooderson ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following settlement of the contested case currently on file against the Respondent:

1. The Respondent was issued license number 304-01628 to practice social work at the master's level on December 10, 1996, as recorded in the permanent records in the office of the Board. Respondent's license was placed on inactive status on December 31, 1998.
2. A Statement of Charges was filed against the Respondent on August 14, 2000. A contested case hearing is currently scheduled for February 12, 2001.
3. The Board has jurisdiction over the parties and subject matter of the Statement of Charges.
4. Upon the Board's approval of this Settlement Agreement, the Respondent shall surrender his Iowa license to practice as a master level social worker. The Respondent shall forward the original license certificate to the Board office

not more than ten (10) calendar days following the Board's approval of this Settlement Agreement. Respondent acknowledges that said surrender shall have the same force and effect as an order of revocation.

5. The Respondent hereby agrees that he shall not apply for reinstatement of his Iowa license to practice social work at the master level, nor shall he apply for licensure to practice at the bachelor or independent levels.

6. This Settlement Agreement is voluntarily submitted by the Respondent to the Board for its consideration. By entering into this agreement, the Respondent voluntarily waives any rights to a contested case hearing on the allegations contained in the Statement of Charges, and waives any objections to the terms of this Settlement Agreement and Final Order.

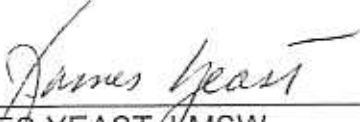
7. This Settlement Agreement constitutes resolution of a contested case proceeding and is subject to approval by the Board. If the Board does not approve this agreement it shall be of no force or effect to either party.

8. The Board's approval of this Settlement Agreement shall constitute a **Final Order** of the Board.


PHILLIP CLYDE WOODERSON,
Respondent

1/12/01
DATE

This Informal Settlement is approved by the Board on 2/12/01, 2001.


JAMES YEAST/LMSW
Board of Social Work Examiners
Board Chairperson

Copies to:

Phillip C. Wooderson
607 N. G Street
Indianola, IA 50125

Heather L. Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 99-05
	)	
PHILLIP CLYDE WOODERSON,	)	STATEMENT OF CHARGES
	)	
Respondent.	)	
	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Phillip Clyde Wooderson was at all times during the following events a licensed social worker. Respondent was issued license number 304-01628 to practice social work at the master's level on December 10, 1996. The license was placed on inactive status on December 31, 1998.

Respondent's current address as reported to the Board is 607 N.G. Street, Indianola, Iowa.

COUNT I

Respondent is charged with engaging in unethical conduct in violation of Iowa Code sections 147.55(3) and 272C.10(3) and section 645 Iowa Administrative Code 280.212(3).

COUNT II

Respondent is charged with making sexual advances toward and engaging in physical intimacies or sexual activities with a patient in violation of 645 Iowa Administrative Code 280.213(3)(a).

COUNT III

Respondent is charged with continuing a professional relationship with a patient after the Respondent became emotionally involved with the patient to the extent that objectivity was no longer possible in providing the professional service, in violation of 645 Iowa Administrative Code 280.213(3)(b).

CIRCUMSTANCES

1. Respondent began providing professional social work services to patient # 1, a minor female, in October of 1995. Respondent continued providing counseling services to patient # 1 on an intermittent basis until October of 1998.

2. From October of 1995 to October of 1998, Respondent repeatedly made inappropriate comments to patient # 1 of a sexual and intimate nature. Throughout this time period, Respondent repeatedly engaged in inappropriate physical contact with patient # 1, including hugging, kissing, holding hands, and touching her shoulders and legs.

3. On October 21, 1998, Respondent made inappropriate comments of a sexual nature to patient #1 and engaged in inappropriate physical contact with patient # 1, including hugging, kissing, holding hands, and touching patient # 1's breasts and buttocks over her clothing.

4. Throughout the course of Respondent's relationship with patient # 1, he purchased numerous personal items for her and took numerous pictures of her.

FINDING OF PROBABLE CAUSE

On August 14, 2000, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 14 day of August, 2000.



James Yeast
Iowa Board of Social Work Examiners
Board Chairperson

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NO. 99-005
	)	
PHILLIP CLYDE WOODERSON	)	NOTICE OF HEARING
License No. 304-01628	)	
	)	
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on August 14, 2000, the Iowa Board of Social Work Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 154C, and 272C (1997) and 645 Iowa Administrative Code chapter 9, 11, 13, and 280.212. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on Monday, February 12, 2001, before the Board. The hearing shall begin at 9:00 a.m. and shall be held in the Lucas State Office Building-5th Floor Professional Licensure Board Room #525, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645 IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

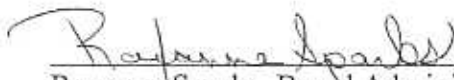
Heather Adams
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-3441

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact Heather Adams, Assistant Attorney General, at the above telephone number.

If you require the assistance of auxiliary aids or services to participate in the hearing because of a disability, immediately call 515/281-5787.

Dated this August 16, 2000.



Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners